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QUESTION 7: Law Proposed by Initiative Petition

Single Family Homes

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY ▶
As required by law, summaries are written by the State Attorney General.

This proposed law would allow single-family homes to be built in a residentially zoned area as long as the land on which it is to be constructed is at least 5,000 square feet, has at least 50 feet of land bordering the street, road, or public way that it faces, and has access to public sewer and water services.

The proposed law would allow cities and towns to reasonably regulate certain aspects of those single-family homes, including their height, distance from neighboring buildings, open space, parking requirements, and whether they can be rented out on a short-term basis. The proposed law would also allow the Executive Office of Housing and Livable Communities to issue guidance or regulations to administer the proposed law.

WHAT YOUR VOTE WILL DO ▶
As required by law, the statements describing the effect of a "yes" or "no" vote are written jointly by the State Attorney General and the Secretary of the Commonwealth.

A YES VOTE would allow single-family homes to be built on lots of 5,000 square feet or more in residential areas, subject to reasonable local regulation of certain aspects of those homes.

A NO VOTE would make no change to the law relative to building single-family homes.

STATEMENT OF FISCAL CONSEQUENCES ▶
As required by law, statements of fiscal consequences are written by the Executive Office of Administration and Finance.

If the proposed law enables the growth of housing in communities, it could provide positive new growth revenues to municipalities. However, it is difficult to project the potential scale of new growth tied to the proposed law. The proposed law thus has no discernible material fiscal consequences for state and municipal government finances.

ARGUMENTS ▶
As provided by law, the 150-word arguments are written by proponents and opponents of each question, and reflect their opinions. **The Commonwealth of Massachusetts does not endorse these arguments, and does not certify the truth or accuracy of any statement made in these arguments**. The names of the individuals and organizations who wrote each argument, and any written comments by others about each argument, are on file in the Office of the Secretary of the Commonwealth.

IN FAVOR:

Massachusetts is the hardest state in the country for young adults to buy a home. The middle class is shrinking because housing costs have doubled since 2014. Many seniors are stuck in their homes without somewhere nearby to downsize.

Massachusetts residents, especially young people, are leaving the state to find a more affordable place to live, separating extended families and hurting our economy.

Requiring huge lot sizes to build a single-family home makes houses expensive, reduces construction of new single-family housing, and encourages developers to build giant McMansions to recoup land costs. Anyone who needs a low-cost, single-family suburban home is all but locked out of the market.

A yes vote would reduce minimum lot size requirements to 5,000 square feet - a size more typical of suburbs nationwide - in places with sufficient infrastructure, so we can have more affordable homes for young families and seniors.

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ARGUMENTS ▶ (continued) ***AGAINST:***

Vote NO on question 7.

Massachusetts needs more housing, but this statewide ballot measure is the wrong approach. It would override local planning by requiring every city and town to allow single-family homes on lots as small as 5,000 square feet, regardless of existing neighborhoods, infrastructure or environmental conditions.

Local officials are directly responsible to taxpayers, and this would remove significant oversight on behalf of their residents. They understand their communities best, and work with residents to plan for housing while balancing public safety, traffic, water and sewer capacity, schools, and environmental protection. This proposal replaces thoughtful local planning with a one-size-fits-all mandate that ignores the individual needs of all 351 Massachusetts cities and towns.

Communities should continue expanding housing through local planning and collaboration—not through a statewide mandate that removes local decision-making.

Vote NO.

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QUESTION 6: Majority Report (continued)

displacement of existing infrastructure and environmental funding priorities.

The Committee also noted the inclusion of the phrase "subject to appropriations" within the Petition. Under Article 48 of the Amendments to the Massachusetts Constitution, ballot initiatives may not directly appropriate funds. Accordingly, even if approved by the voters, the measure would not itself compel the expenditure of funds but would instead operate within the Commonwealth's existing budgetary process, in which the Legislature retains exclusive authority over appropriations decisions. This constitutional framework ensures that funding decisions remain subject to annual budget deliberation and fiscal prioritization. As such, passage of this Petition would neither guarantee additional funding nor materially change the status quo.

The Committee recognizes the importance of protecting water resources, preserving natural ecosystems, and supporting long-term environmental sustainability across the Commonwealth. However, after careful consideration, a majority of the Committee concludes that the Petition, as written, raises questions regarding fiscal impacts, programmatic displacement, and constraints on administrative flexibility.

It is important to note that Article 48 of the Amendments to the Massachusetts Constitution, which governs the initiative petition process, requires the Attorney General to provide initial certification of initiative petitions that meet the specific and limited requirements listed in Article 48. In making a decision on whether to initially certify an initiative petition, the Attorney General does not evaluate a petition's broader constitutionality; her certification decision is limited only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time.

For these reasons, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-15, House 5005, *Initiative Petition for a Law to Protect Water & Nature*.

Senators.	**Representatives.**
Cindy F. Friedman	Alice Hanlon Peisch
Brendan P. Crighton	Kate Hogan
Barry R. Finegold	Frank A. Moran
	Michael S. Day
	David T. Vieira

QUESTION 7: Majority Report

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-03, House 5000, *Initiative Petition for a Law to Allow Single-Family Homes on Small Lots in Areas with Adequate Infrastructure* on March 16, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5597.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions ("the Committee") voted to recommend that the General Court **take no action** on Initiative Petition 25-03, House 5000, *Initiative Petition for a Law to Allow Single-Family Homes on Small Lots in Areas with Adequate Infrastructure* ("the Petition").

In reaching this determination, the Committee conducted a comprehensive review of the proposed measure, including a detailed analysis of its language, structure, and intended effect. The Committee evaluated testimony and documentary evidence presented during the public hearing, including input from subject matter experts in housing policy, municipal governance, land use planning,

QUESTION 7: Majority Report (continued)

and infrastructure management, as well as statements from proponents, opponents, and members of the public. In addition, the Committee considered the potential legal, administrative, and fiscal implications of the proposal for both the Commonwealth and its municipalities.

The Initiative Petition seeks to permit, as a matter of right, the development of single-family homes on 5,000 square foot lots in areas determined to have adequate infrastructure, notwithstanding existing local zoning requirements. The stated objective of the petition is to increase housing production of small homes, expand the supply of buildable land, and improve housing affordability across the Commonwealth. Opponents question whether the goal of the petition would be realized given the specific language of the petition. For example, they noted ambiguity around size of structures, and a lack of implementation guidance (including how "adequate" infrastructure would be determined), which could result in uneven application across jurisdictions. The Committee recognizes the urgency of the Commonwealth's housing challenges and the importance of advancing policies that promote the development of diverse, accessible, and attainable homeownership opportunities.

While the Committee supports the overarching goal of expanding housing opportunities and acknowledges the need for bold and effective responses to the Commonwealth's housing shortage, based on the testimony received and the fact that the legislature cannot by law make any changes to the ballot question as written by the proponents, the Committee cannot support this Petition.

It is important to note that Article 48 of the Amendments to the Massachusetts Constitution, which governs the initiative petition process, requires the Attorney General to provide initial certification of initiative petitions that meet the specific and limited requirements listed in Article 48. In making a decision on whether to initially certify an initiative petition, the Attorney General does not evaluate a petition's broader constitutionality; her certification decision is limited only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time.

For these reasons, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-03, House 5000, *Initiative Petition for a Law to Allow Single-Family Homes on Small Lots in Areas with Adequate Infrastructure*.

Senators.	**Representatives.**
Cindy F. Friedman	Alice Hanlon Peisch
Brendan P. Crighton	Kate Hogan
Paul R. Feeney	Frank A. Moran
Barry R. Finegold	Michael S. Day
	David T. Vieira

QUESTION 8: Majority Report

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-10, House 5002, *Initiative Petition for a Law Relative to Regulating Marijuana*, on March 23, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5602.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions ("the Committee") voted to recommend that the General Court **take no action** on Initiative Petition 25-10/House 5002, *Initiative Petition for a Law Relative to Regulating Marijuana* ("the Petition").

In reaching this determination, the Committee conducted a comprehensive review of the proposed measure, including a detailed analysis of its language, structure, and intended

QUESTION 6: Full Text of Proposed Law (continued)

(d) There shall be a 15-member board called the nature for all board comprised of the secretary of energy and environmental affairs, commissioner of fish and game, the commissioner of conservation and recreation, the secretary of housing and livable communities, and the climate chief, and ten members of the public to be appointed by the Governor. The ten public members shall include representatives of underserved communities and indigenous peoples, and one or more persons with expertise or experience in natural resource conservation. The executive office of energy and environmental affairs may make expenditures from the fund to hire staff necessary to manage and make expenditures from the fund. The board shall promulgate regulations for expenditures from the nature for all fund by the executive office of energy and environmental affairs, including, but not limited to: (i) requirements for natural resource conservation that support and align with environmental justice principles, as defined in section 62 of chapter 30; (ii) requirements for access and restoration of lands and natural resources of indigenous cultural significance, (iii) guidelines to promote natural resource conservation in concert with affordable housing development; (iv) guidelines that prevent expenditures from supplanting or otherwise resulting in a decrease in bond cap spending on existing capital programs; and (vi) guidelines for the scope and prioritization of special obligation bonds issued to support natural resource conservation.

(e) State agencies, municipalities or groups of municipalities, regional governments, other regional public entities including, but not limited to, regional planning agencies, economic development districts, and water districts, operating public charities with purposes involving natural resource conservation, and tribal governments shall be lawful recipients of such expenditures.

(f) The executive office of energy and environmental affairs shall submit annually to the board, the environmental justice council established in section 62L of chapter 30, the House and Senate Committees on Ways & Means, and the Joint Committee on Environment & Natural Resources a report of the proportion of funds expended from the nature for all fund that are dedicated to the acquisition or improvement of land in cities or towns containing environmental justice populations as defined in section 62 of chapter 30.

(g) All of the provisions of this section shall be subject to appropriation by the legislature.

SECTION 2. Subsection 2EEEEEE(a) of chapter 29 of the General Laws is hereby amended in the second sentence by striking out the words “50% of”.

SECTION 3. Section 1 shall take effect on July 1, 2027.

SECTION 4. Section 2 shall take effect on July 1, 2028.

QUESTION 7: Full Text of Proposed Law

An Act to allow single-family homes on small lots in areas with adequate infrastructure.

Be it enacted by the People, and by their authority;

SECTION 1. Section 3 of chapter 40A of the Massachusetts General Laws, as so appearing, is hereby amended by adding the following paragraph:

No zoning ordinance or by-law shall prohibit, unreasonably restrict or require a special permit or other discretionary zoning approval for the use of land or structures for a single-family residence in a zoning district that allows residential uses; provided, that the single-family residence is fully contained within a lot measuring equal to or greater than five thousand square feet in area and with equal to or greater than fifty feet of frontage and which has access to public sewer service and public water service; and provided further, that the use of land or structures for such a single-family residence under this paragraph may be subject to reasonable regulations, including, but not limited to, regulations concerning dimensional setbacks and the bulk and height of structures and may be subject to restrictions and prohibitions on short-term rental. The Executive Office of Housing and Livable Communities may issue guidelines or promulgate regulations to administer this paragraph.

SECTION 2. This act shall take effect as provided in Article 48 of the Amendments to the Massachusetts Constitution, as amended.